

STATE OF MICHIGAN

IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW JAMES PIGORS,

1977 Whitehall Road, Lot 17

North Muskegon, MI 49445

Phone: (231) 903-5690

Email: andrewjpigors@gmail.com

Plaintiff, In Propria Persona,

v.

Case No. 2025-002760-CZ

SHADY OAKS PARK MHP LLC,**

****Hon. [ASSIGNED JUDGE]**

a New Jersey Limited Liability Company,

PO Box 249, 77 Engle Street,

Englewood, NJ 07631,

HOMES OF AMERICA, LLC,

a Dissolved Michigan Limited Liability Company,

Last Known Address: Muskegon, MI,

CRICKLEWOOD MHP LLC,

a Limited Liability Company,

Address to be determined through discovery,

and

DOES 1-10,

Unknown owners, managers, agents, and

affiliated entities to be identified

through discovery,

Joint and Several Defendants.

_____ /

FIRST AMENDED COMPLAINT AND JURY DEMAND

(Filed pursuant to MCR 2.110, MCR 2.111, MCR 2.113)

NOW COMES Plaintiff, ANDREW JAMES PIGORS, appearing in propria persona, and for his Fi

Amended Complaint against Defendants SHADY OAKS PARK MHP LLC, HOMES OF AMERICA, LL, CRICKLEWOOD MHP LLC, and DOES 1-10 (collectively, "Defendants"), respectfully states as follows:

I. PARTIES

1. Plaintiff Andrew James Pigors ("Plaintiff") is a natural person and resident of Muskegon County, Michigan. Plaintiff was a tenant and titled mobile home owner at Lot 17, 1977 Whitehall Road, Shady Oaks Mobile Home Community, Laketon Township, Muskegon County, Michigan 49445. Plaintiff is the titled owner of a 1970 Marlette mobile home, VIN 1646732, as confirmed by the Michigan Secretary of State. Under Michigan law, a mobile home is personal property belonging to the titled owner, distinct from the real property on which it sits. MCL 125.2330i; MCL 125.1305. Plaintiff resided at Shady Oaks with his minor child, L.D.W.

2. Defendant Shady Oaks Park MHP LLC ("Shady Oaks") is a New Jersey limited liability company registered at PO Box 249, 77 Engle Street, Englewood, NJ 07631. According to the 2024 Muskegon County Ad Valorem Assessment Roll, this entity purchased the real property at 1977 Whitehall Road (Parcel Number 09-001-200-0064-00) on July 30, 2021, for \$1,400,000. Shady Oaks owns the land at Shady Oaks Mobile Home Community, operates the park, and is the landlord entity that collected rent, billed utilities, and initiated eviction proceedings against Plaintiff. Its LARA-registered licensee contact is Bryon Fields at License #1201891.

3. Defendant Homes of America, LLC ("HOA") is a dissolved Michigan limited liability company that served as the corporate operator and property management company for Shady Oaks Mobile Home Community. Despite administrative dissolution under Michigan law, HOA -- or persons acting on its behalf -- continued to operate the park, collect rent, initiate legal proceedings, and assert authority over residents' property as if it were a going concern. Under MCL 450.4802, a dissolved LLC may only wind up its business and may not initiate new proceedings or enter new agreements.

4. Defendant Cricklewood MHP LLC ("Cricklewood") is a limited liability company that was interposed as a party to the coerced lease agreement signed by Plaintiff under duress on March 26, 2024. Park Manager Kim Davis directed Plaintiff to sign a new lease with Cricklewood under express threat of immediate eviction. Despite being the named lessor on the coerced lease, Cricklewood has never been identified to Plaintiff as the owner or operator of the park, and its relationship to the other named Defendants is deliberately obscured.

5. Defendants DOES 1-10 are persons and entities whose true names and capacities are currently unknown to Plaintiff but who, upon information and belief, are or were owners, managers, officers, members, agents, employees, or contractors of one or more of the named Defendants, or are affiliated entities through which the named Defendants conduct business. Plaintiff will seek leave to amend this Complaint to insert the true names and capacities of the DOE Defendants when ascertained through discovery. Upon information and belief, DOES 1-10 include but are not limited to: Alden Global Capital LLC (a New York LLC believed to be the parent or controlling entity); Partridge Equity Group (a Norton Shores, Michigan entity that cashed Plaintiff's \$1,300.26 payment); VRM Capital Corp; HOA MI Retail Homes LLC; individual park managers and agents, including Kim Davis and Nicole Browley; contractor Henry Brandel; and attorneys who filed suit on behalf of

the dissolved entity.

6. At all times relevant to this Complaint, each Defendant acted as the agent, employee, partner, joint venturer, alter ego, and/or co-conspirator of each other Defendant, and each Defendant ratified and approved the acts of every other Defendant as alleged herein.

II. JURISDICTION AND VENUE

7. This Court has subject-matter jurisdiction pursuant to MCL 600.601 and MCL 600.605, as this is a civil action involving claims for damages exceeding \$25,000, exclusive of interest and costs.

8. Venue is proper in Muskegon County under MCL 600.1629 because the real property at issue is located in Laketon Township, Muskegon County, Michigan, and the acts and omissions giving rise to Plaintiff's claims occurred in Muskegon County.

9. This Court has personal jurisdiction over the foreign LLC Defendants because they own real property in Michigan (MCL 600.701), transact business in Michigan (MCL 600.715), and committed tortious acts within Michigan (MCL 600.705(2)).

10. Administrative Exhaustion. Plaintiff's claims sound primarily in tort (conversion, fraud, negligence, breach of contract, MCPA, IIED, unjust enrichment) and are properly before this Court without first exhausting administrative remedies through LARA. The Michigan Mobile Home Commission Act provides for concurrent civil remedies and does not require exhaustion of administrative proceedings as a prerequisite to a civil suit. See *Saginaw County v John Sexton Corp of New Jersey*, 232 Mich App 202, 211 (1998) (exhaustion not required where complaint seeks tort damages rather than administrative relief); MCL 600.2918 (statutory action for recovery of possession -- civil remedy independent of LARA). To the extent Plaintiff's Complaint (MHCA violations) implicates regulatory enforcement, Plaintiff requests referral to LARA as a complementary remedy, not as a substitute for civil damages. [ANDREW: Consider filing a parallel LARA complaint regarding License #1201891 -- this strengthens the civil case and creates an independent enforcement record.]

III. GENERAL ALLEGATIONS OF FACT

A. Plaintiff's Tenancy and Mobile Home Ownership

10. In approximately 2021, Plaintiff became a resident of Shady Oaks Mobile Home Community at Lot 17, 1977 Whitehall Road, Laketon Township, Muskegon County. Plaintiff submitted a rental application to "Homes of America," identified as the Owner/Manager, and was approved. Plaintiff's original monthly lot rent was \$325 per month, and a subsequent lease dated November 2023 established lot rent at \$395 per month.

11. Plaintiff is the titled owner of a 1970 Marlette mobile home, VIN 1646732, located on Lot 17. Under Michigan law, a mobile home is personal property belonging to the titled owner, distinct from the real property on which it sits. MCL 125.2330i; MCL 125.1305. The Michigan Secretary of State title records

confirm Plaintiff's ownership.

12. Plaintiff resided at Shady Oaks with his minor child, L.D.W., who was approximately three years old at the commencement of tenancy. Lot 17 was L.D.W.'s primary residence during Plaintiff's custodial periods.

B. Rent Escalation and Lease Coercion

13. On or about March 26, 2024, Park Manager Kim Davis directed Plaintiff to sign a new lease agreement with a different entity -- Cricklewood MHP LLC -- under express threat of immediate eviction. Davis stated words to the effect of "sign or be evicted." The lease was signed off-site, not at the community office. No explanation was provided for the change in entity from Homes of America to Cricklewood. This constituted a coerced lease modification executed under duress.

14. Through this coerced modification and subsequent increases imposed without proper statutory notice, Plaintiff's monthly lot rent escalated as follows:

- a. Original rent: \$325/month;
- b. November 2023 lease: \$395/month;
- c. March 2024 coerced Cricklewood lease: \$695/month;
- d. April 2025: \$720/month.

This represents a total increase of 121% in approximately 16 months (\$325 -> \$720). No evidence of proper 30-day written notice under MCL 125.2328(1)(c) has been produced by Defendants for any of these increases.

15. The timing of the rent escalation correlates directly with Plaintiff's complaints about habitability conditions, establishing a retaliatory motive.

C. Ledger Manipulation and Payment Fraud

16. Defendants systematically manipulated Plaintiff's payment ledger to fabricate rental arrears and justify eviction proceedings. Forensic analysis reveals three irreconcilable versions of the same RentManager ledger (Account #33700, SO LOT 17):

- a. Ledger Version A (printed August 22, 2024, at 11:01 AM, software v12.240702): Shows a credit balance of negative \$61.64 -- meaning Plaintiff owed nothing and was in fact overpaid.
- b. Ledger Version B (printed January 8, 2025, at 1:50 PM, software v12.241104): Shows a balance due of \$2,180.18 -- printed three days before Defendants filed the second eviction action.
- c. Ledger Version C (submitted to Court): Shows yet different amounts from both Versions A and B.

17. The \$2,241.82 discrepancy between Ledger Versions A and B cannot be explained by normal rent accrual. The software version changed between printings (enabling retroactive editing), and the page count expanded (proving transactions were added or removed). Version A was emailed by Park Manager Kim Davis at 11:01 AM on the same day it was printed, creating a 39-minute contemporaneous evidence window proving

authenticity.

18. Defendants omitted at least \$6,085.99 in documented payments from Plaintiff's ledger:

a. MDHHS Housing Assistance: \$1,962.45 (April 2024) -- Defendants' bank rejected this government assistance payment. Defendants admitted in their own Answer (filed January 9, 2025, Affirmative Defense #14) that they have a policy of refusing government housing assistance;

b. MDHHS Housing Assistance: \$768.48 (April 12, 2024) -- omitted entirely from all ledger versions;

c. TrueNorth CERA Grant: \$2,054.80 (check #428979, August 14, 2024) -- appears in Ledger Version A but vanishes from Version B;

d. Personal Check: \$1,300.26 (August 14, 2024) -- fully credited in Version A, completely omitted from Version B. This check was cashed by Partridge Equity Group -- a separate entity -- rather than credited to Plaintiff's account.

19. When these documented payments totaling \$6,085.99 are credited against Defendants' counter-complaint claim of \$3,805.44, the actual account balance is negative \$2,280.55 -- meaning Defendants owe Plaintiff, not the reverse.

20. Defendants further inflated Plaintiff's account through unauthorized charges including: an NSF fee of \$35.00 originating from another tenant's account (Jamie Semelbauer); legal fees of \$178.00 (Defendants' own attorney costs charged to Plaintiff's ledger before any judgment); and late fee overcharges exceeding contractual amounts by a total of \$53.00.

D. Sewage Crisis and Habitability Failures

21. Beginning in approximately late 2024, raw sewage began overflowing from an interceptor tank onto the ground surface near Lot 17 and adjacent lots, creating a severe public health hazard in a community with children, including Plaintiff's minor child L.D.W.

22. On March 7, 2025, Plaintiff sent a formal written complaint to Defendants at shadyoaks@ourhomesofamerica.com demanding remediation within 48 hours. On March 17, 2025, Plaintiff sent an urgent follow-up citing MCL 554.139 and threatening complaints to Muskegon County Health, City of Muskegon Water & Sewer, the Michigan Department of Environment, Great Lakes, and Energy ("EGLE"), and Housing Law Enforcement. Defendants did not respond to either communication.

23. On March 18, 2025, EGLE received a complaint from Muskegon County Public Health regarding the sewage conditions at Shady Oaks.

24. On March 20, 2025, EGLE Environmental Quality Analysts Connor O'Brien and Amanda St. Amant inspected the property. The inspection confirmed raw sewage discharging from an interceptor tank onto the ground surface near occupied homes. The inspectors found residual pooled sewage, staining, sewage odor, and an unsecured septic/holding tank lid. Neighboring residents confirmed persistent odors and plumbing backup. EGLE rated the facility "NOT IN COMPLIANCE" for both Facility Site Review and Operation.

Maintenance.

25. On March 26, 2025, EGLE left a voicemail on the posted office telephone number for Shady Oaks. As of April 4, 2025 -- seventeen days after the inspection -- no one from Shady Oaks had contacted EGLE.

26. On April 15, 2025, EGLE issued Violation Notice VN-017235, citing violations of Part 31 of the Natural Resources and Environmental Protection Act (MCL 324.3101 et seq.) and the Mobile Home Commission Act (MCL 125.2301 et seq.), including: (a) illegal discharge of sewage onto the ground surface; (b) failure to notify EGLE or health authorities within 24 hours of a sewage release; and (c) failure to submit required written reports within five days.

27. In late June 2025, sewage was again leaking during heavy rains, killing vegetation near occupied homes, demonstrating that Defendants' minimal remediation efforts (jetting and TV inspection only -- no excavation or pipe replacement) were inadequate.

E. Utility Meter Fraud and Water Shutoff

28. Beginning approximately May 2025, Defendants imposed unauthorized water and sewer submeter charges of approximately \$87 per month. The water meter was installed without Plaintiff's notice or consent, in violation of MCL 125.2328(1)(b).

29. Analysis of Defendants' Zego billing portal records reveals that water gallons consumed and sewer gallons discharged were reported as identical every month: April 2025 (4,245 = 4,245); May 2025 (3,233 = 3,233); June 2025 (3,100 = 3,100). This is a physical impossibility. Plaintiff had installed an outdoor spigot connected to the main water line for outdoor use, which drained into the ground and never entered the sewer system. Water consumed must always exceed sewer discharged. Identical readings demonstrate the metering was fabricated or fraudulently calculated.

30. On May 20, 2025, Defendants shut off water service to Plaintiff's home while Plaintiff's minor child, L.D.W. was present at the residence. Cutting off water to an occupied dwelling with a child present constitutes an extreme and dangerous act endangering the health and welfare of a minor.

F. Wrongful Eviction and Property Destruction

31. Defendants filed three separate eviction actions against Plaintiff based on the manipulated ledger, all on behalf of the dissolved entity Homes of America, LLC:

- a. First Disposition (File No. 2405891BLT, June 26, 2024): Judgment of \$1,928.17;
- b. Second Disposition (File No. 250616264T, February 24, 2025): Judgment of \$3,984.31;
- c. Third Disposition (File No. 250616264T, April 14, 2025): Judgment of \$3,638.65.

All three dispositions, totaling \$9,551.13, are void ab initio because they were obtained by a dissolved entity -- Homes of America, LLC -- that lacked legal capacity to initiate proceedings under MCL 450.4802.

32. On or about July 3, 2025, two individuals attempted to break into Plaintiff's home at Lot 17. The

individuals were later identified as members of the crew that returned on July 17, 2025, to forcibly remove Plaintiff's property.

33. On July 14, 2025, Nicole Browley appeared at a hearing and claimed to represent Homes of America, LLC -- a dissolved entity -- in connection with the eviction of Plaintiff.

34. On July 17, 2025, Defendants forcibly removed Plaintiff's property from Lot 17. Locks were drilled on the home and outbuildings. All personal property -- including furniture, clothing, children's belongings, tools, and household goods -- was removed or destroyed. A "FREE" sign was posted on Plaintiff's titled mobile home inviting public scavenging of titled personal property. Appliances -- including a stove, washer, and dryer -- were taken by contractor Henry Brandel. This occurred despite Plaintiff being paid through at least April 2025, and despite the absence of any lawful writ authorizing the seizure or destruction of Plaintiff's titled personal property.

35. On July 22, 2025 -- five days after destroying Plaintiff's home -- Defendants billed Plaintiff \$7,633.13 for lot rent on a lot where Plaintiff's home had been forcibly removed and destroyed.

G. The \$750 Buyout and Rights Waiver

36. Prior to the destruction of Plaintiff's home, Defendants offered Plaintiff a \$750 "buyout" conditioned upon Plaintiff executing a complete waiver of all legal rights and claims against Defendants. This unconscionable condition attempted to extinguish claims worth potentially hundreds of thousands of dollars for a fraction of their value.

H. Blocked Home Sales

37. Plaintiff had willing buyers for his titled mobile home on at least three documented occasions. Defendants interfered with these sales by: (a) making false statements to prospective buyers that Plaintiff "does not own the home"; (b) claiming the home was "abandoned"; and (c) representing that Defendants would sell the home through "their legal team." These misrepresentations blocked at least three sales and deprived Plaintiff of estimated proceeds of \$60,000-\$105,000 in equity.

I. Dissolved Entity Operations and Entity Switching

38. According to Michigan Department of Licensing and Regulatory Affairs (LARA) records, Homes of America, LLC has been administratively dissolved. Despite this dissolution, HOA -- or persons acting under its name -- continued to:

- a. Operate Shady Oaks Mobile Home Community as if HOA were a going concern;
- b. Collect rent from tenants, including Plaintiff;
- c. Initiate legal proceedings in the name of the dissolved entity;
- d. Execute contracts and lease modifications;
- e. Assert ownership and control over residents' titled property;

f. Use the email domain "ourhomesofamerica.com" for official park communications.

39. On July 17, 2025, Defendant Nicole Browley admitted she was acting on behalf of Homes of America LLC during the forced removal of Plaintiff's property, confirming the dissolved entity's continued operational control.

40. The corporate structure surrounding Shady Oaks involves multiple entities across multiple states including New Jersey, Colorado, New York, and Michigan -- which, upon information and belief, are used to evade liability, obscure ownership, and frustrate the enforcement of tenant rights. These entities include at least: Shady Oaks Park MHP LLC (NJ); Shady Oaks Park LLC (CO); Homes of America, LLC (MI, dissolved); Cricklewood MHP LLC; Alden Global Capital LLC (NY); Partridge Equity Group (North Shores, MI); VRM Capital Corp; and HOA MI Retail Homes LLC.

41. Plaintiff's \$1,300.26 payment to "Shady Oaks MHP" was cashed by Partridge Equity Group -- a different entity -- demonstrating commingling of funds among the interrelated corporate structure.

42. The 2024 State Equalized Value of the property was \$181,900 against a purchase price of \$1,400,000, with personal property declared at \$0, suggesting systematic undercapitalization and asset-stripping.

J. Rent Ledger Contradictions and Judicial Findings

43. During the eviction proceedings presided over by Judge Maria Ladas Hoopes, the court found that Plaintiff was paid through December 2024. Despite this judicial finding, Defendants' management never reset or corrected Plaintiff's ledger balance, continuing to accrue charges and penalties on the fabricated arrears.

COUNT I -- VIOLATION OF MICHIGAN CONSUMER PROTECTION ACT

MCL 445.903 et seq.

44. Plaintiff re-alleges and incorporates by reference paragraphs 1 through 43 as if fully set forth herein.

45. The Michigan Consumer Protection Act ("MCPA"), MCL 445.903, prohibits unfair, unconscionable, or deceptive methods, acts, or practices in the conduct of trade or commerce.

46. Defendants are engaged in "trade or commerce" as defined by MCL 445.902(1)(g), specifically the rental and leasing of residential property and the provision of housing services.

47. Defendants committed the following unfair, unconscionable, or deceptive acts in violation of MCL 445.903:

a. MCL 445.903(1)(c) -- Representing that Defendants' services (leasing, property management) had certain characteristics, uses, and benefits that they did not have, by holding themselves out as a legitimate operating entity when HOA was dissolved and the corporate structure was designed to evade accountability;

b. MCL 445.903(1)(n) -- Causing a probability of confusion or misunderstanding as to the legal rights and obligations, or remedies of Plaintiff, including through the \$750 buyout conditioned on waiver of all claims;

the coerced Cricklewood lease, and false statements about Plaintiff's ownership of his titled mobile home;

c. MCL 445.903(1)(s) -- Failing to reveal material facts about the condition of the property, including known sewage contamination, habitability failures, and the dissolved status of the operating entity;

d. MCL 445.903(1)(y) -- Gross discrepancies between the oral representations of habitability and the actual condition of the premises;

e. MCL 445.903(1)(bb) -- Making false statements of fact about Plaintiff's property ownership to prospective buyers, representing that Plaintiff did not own his titled mobile home and that Defendants would sell it themselves;

f. MCL 445.903(1)(cc) -- Failing to reveal material facts about the condition of the premises that were known to Defendants at the time of the transaction, including raw sewage discharge confirmed by EGI inspection.

48. Defendants' MCPA violations were willful, knowing, and deliberate. Defendants manipulated ledger records, rejected government housing assistance payments, filed suit through a dissolved entity, and made false representations to third-party buyers -- all while concealing known habitability defects.

49. As a direct and proximate result of Defendants' MCPA violations, Plaintiff has suffered actual damages including but not limited to: loss of his titled mobile home (valued at \$15,000-\$45,000); loss of personal property; overpayment of rent due to coerced increases; loss of sale proceeds from blocked transaction (\$60,000-\$105,000); relocation costs; and emotional distress.

50. Under MCL 445.911(2), Plaintiff is entitled to recover the greater of \$250 or actual damages, plus reasonable attorney fees (or reasonable costs and fees for pro se litigants), plus court costs.

51. Under MCL 445.911(2), where the conduct was willful and knowing, as it was here, the court may award treble damages (actual damages multiplied by three).

WHEREFORE, Plaintiff demands judgment against Defendants, jointly and severally, for actual damages trebled under MCL 445.911(2), plus costs, fees, and such other relief as this Court deems just and equitable.

COUNT II -- BREACH OF IMPLIED WARRANTY OF HABITABILITY

MCL 554.139

52. Plaintiff re-alleges and incorporates by reference paragraphs 1 through 43 as if fully set forth herein.

53. Under MCL 554.139(1), in every lease or license of residential premises, the lessor covenants that:

(a) The premises and all common areas are fit for the use intended by the parties; and

(b) The premises are kept in reasonable repair during the term of the lease, and the premises comply with applicable health and safety laws of the state and of the local governmental unit in which the premises are located.

54. MCL 554.139(3) provides that this covenant cannot be waived by any provision of the lease or otherwise.

55. Defendants breached the implied warranty of habitability in the following respects:

a. Raw sewage discharge: Beginning in approximately late 2024, raw sewage overflowed from an interceptor tank onto the ground surface near Plaintiff's home and adjacent lots, confirmed by EGLE inspection on March 20, 2025, and documented in EGLE Violation Notice VN-017235 (April 15, 2025);

b. Environmental non-compliance: EGLE rated the facility "NOT IN COMPLIANCE" for both Facility Site Review and Operation & Maintenance, citing violations of Part 31 NREPA (MCL 324.3101 et seq.) and the Mobile Home Commission Act (MCL 125.2301 et seq.);

c. Failure to remediate: Despite written notice from Plaintiff (March 7 and 17, 2025), state inspection (March 20, 2025), and formal violation notice (April 15, 2025), Defendants performed only minimal remediation (jetting and TV inspection -- no excavation or pipe replacement). Sewage resumed leaking in late June 2025;

d. Water shutoff: On May 20, 2025, Defendants shut off water service to Plaintiff's occupied dwelling while his minor child L.D.W. was present, depriving the household of potable water, sanitation, and the ability to maintain basic hygiene;

e. Unauthorized and defective utility service: Installation of water submeters without notice or consent, a violation of MCL 125.2328(1)(b), with demonstrably fabricated meter readings showing identical water and sewer gallons -- a physical impossibility;

f. Unsafe conditions: Unsecured septic/holding tank lid, pooling sewage near occupied homes including homes with children, and conditions creating a public health hazard.

56. Defendants had actual notice of the habitability defects through Plaintiff's written complaints (March 7 and 17, 2025) and through EGLE's inspection and communications, and had more than a reasonable time to repair -- exceeding four months from first written notice to the forced removal on July 17, 2025.

57. As a direct and proximate result of Defendants' breach, Plaintiff has suffered damages including but not limited to: diminished use and enjoyment of the premises; health risks from raw sewage exposure near Plaintiff's home where his minor child L.D.W. resided; costs of temporary remediation measures; overpayment of rent for premises that did not comply with applicable health and safety laws; and constructive eviction from the premises rendering the premises uninhabitable.

WHEREFORE, Plaintiff demands judgment against Defendants, jointly and severally, for rent abatement for the full period of uninhabitable conditions, repair and remediation costs, consequential damages, and such other relief as this Court deems just and equitable.

COUNT III -- CONVERSION OF PERSONAL PROPERTY

MCL 600.2919a

58. Plaintiff re-alleges and incorporates by reference paragraphs 1 through 43 as if fully set forth herein.

59. Conversion is defined as any distinct act of dominion wrongfully exerted over another's personal property in denial of or inconsistent with that person's rights therein. Under Michigan common law, the elements of conversion are: (1) the plaintiff had an ownership or possessory interest in the property; (2) the defendant took or detained the property; and (3) the defendant's actions were inconsistent with the plaintiff's right to the property.

60. Plaintiff had a clear ownership interest in the following personal property:

a. 1970 Marlette mobile home, VIN 1646732 -- titled to Plaintiff with the Michigan Secretary of State. Under MCL 125.2330i and MCL 125.1305, a mobile home is personal property belonging to the titled owner, distinct from the real property on which it sits;

b. Household contents -- furniture, clothing, children's belongings (including L.D.W.'s possessions), tools, household goods, and personal effects;

c. Appliances -- stove, washer, dryer, and other appliances installed in and belonging to Plaintiff.

61. On July 17, 2025, Defendants exercised wrongful dominion over Plaintiff's personal property by:

a. Drilling locks on Plaintiff's titled mobile home and outbuildings without lawful authority;

b. Removing all of Plaintiff's personal property from the premises;

c. Posting a "FREE" sign on Plaintiff's titled mobile home, inviting members of the public to take and scavenge Plaintiff's titled personal property;

d. Allowing contractor Henry Brandel to remove Plaintiff's appliances, including a stove, washer, and dryer;

e. Destroying, discarding, or permitting the destruction of Plaintiff's remaining household contents and personal effects.

62. Defendants' actions were wholly inconsistent with Plaintiff's ownership rights. No lawful writ of restitution or court order authorized the seizure, destruction, or disposal of Plaintiff's titled personal property. The eviction judgments upon which Defendants relied were void ab initio because they were obtained from Homes of America, LLC, a dissolved entity lacking legal capacity to sue under MCL 450.4802.

63. The attempted break-in on July 3, 2025, by individuals later identified as members of the crew that returned July 17, 2025, demonstrates that the conversion was premeditated.

64. Defendants further converted Plaintiff's property by blocking at least three sales of the mobile home to willing buyers through false representations that Plaintiff did not own the home and that Defendants would sell it through "their legal team." These misrepresentations deprived Plaintiff of the opportunity to realize the value of his personal property, estimated at \$60,000-\$105,000 in equity.

65. MCL 600.2919a provides: "A person damaged as a result of . . . another person's buying, receiving, or aiding in the concealment of any . . . stolen, embezzled, or converted property . . . may recover 3 times the

amount of actual damages sustained, plus costs and reasonable attorney fees."

66. Additionally, MCL 600.2918 provides that any person who is put out of or deprived of any lands or tenements by force, intimidation, fraud, or stealth may recover treble damages.

67. Defendants' conversion was accomplished through force (drilling locks, physical removal), fraud (fabricated ledger, dissolved-entity proceedings), and stealth (attempted break-in on July 3, 2025).

68. As a direct and proximate result of Defendants' conversion, Plaintiff has suffered actual damages including but not limited to: loss of his titled mobile home (valued at \$15,000-\$45,000); loss of all personal property and household contents; loss of blocked sale proceeds (\$60,000-\$105,000); and all consequential damages.

WHEREFORE, Plaintiff demands judgment against Defendants, jointly and severally, for treble damages under MCL 600.2919a and MCL 600.2918, plus costs, reasonable fees, and such other relief as this Court deems just and equitable.

COUNT IV -- FRAUD AND MISREPRESENTATION

Common Law

69. Plaintiff re-alleges and incorporates by reference paragraphs 1 through 43 as if fully set forth herein.

70. Under Michigan common law, the elements of fraud are: (1) the defendant made a material representation; (2) the representation was false; (3) when the defendant made the representation, the defendant knew it was false, or made it recklessly without knowledge of its truth; (4) the defendant made the representation with the intention that the plaintiff would act upon it; (5) the plaintiff acted in reliance upon the representation; and (6) the plaintiff suffered damages as a result.

71. Defendants made the following material misrepresentations of fact:

a. Ledger fraud: Defendants produced three irreconcilable versions of Plaintiff's RentManager ledger showing balances ranging from a \$61.64 credit to a \$2,180.18 debt -- a discrepancy of \$2,241.82 that cannot be explained by normal rent accrual. Defendants presented the inflated ledger versions to the Court as accurate records in support of their eviction proceedings, knowing them to be false;

b. Omitted payments: Defendants omitted at least \$6,085.99 in documented payments from Plaintiff's ledger including government housing assistance payments and personal checks, while simultaneously suing Plaintiff for non-payment of the very amounts that had been paid;

c. Entity identity: Defendants represented themselves as a lawful, operating entity with authority to sue and collect rent, and manage the property, when Homes of America, LLC was in fact dissolved and lacked legal capacity under MCL 450.4802;

d. Ownership misrepresentation: Defendants made false statements to prospective buyers of Plaintiff's mobile home that Plaintiff "does not own the home," that the home was "abandoned," and that Defendants would sell the home through "their legal team" -- when Plaintiff was the titled owner per Michigan Secretary of State records.

of State records;

e. Utility metering: Defendants presented fabricated utility meter readings showing identical water and sewer consumption every month -- a physical impossibility -- and billed Plaintiff based on these fabricated readings;

f. Coerced lease: On March 26, 2024, Kim Davis represented that Plaintiff must sign a new lease with Cricklewood MHP LLC or face immediate eviction, when upon information and belief there was no lawful basis for requiring a new lease with a different entity;

g. Post-destruction billing: On July 22, 2025, Defendants billed Plaintiff \$7,633.13 for lot rent on a lot from which they had forcibly removed and destroyed Plaintiff's home five days earlier, representing that the amount was legitimately owed.

72. Each of these representations was false at the time it was made. Defendants knew the representations were false or made them with reckless disregard for the truth. The falsity of the ledger records is demonstrated by the irreconcilable discrepancies between versions, the omitted payments, and the unauthorized charges. The falsity of the entity representations is demonstrated by LARA dissolution records. The falsity of the ownership representations is demonstrated by Michigan Secretary of State title records.

73. Defendants made these representations with the intent that Plaintiff, the Court, prospective buyers, and others would act upon them -- specifically, to justify eviction, to prevent Plaintiff from selling his property, and to deprive Plaintiff of his home and belongings.

74. Plaintiff and others relied upon these misrepresentations to their detriment. The Court relied upon the inflated ledger in entering eviction judgments. Prospective buyers relied upon Defendants' false ownership claims in declining to purchase the home. Plaintiff relied upon the entity representations in believing he was dealing with a lawful operator.

75. As a direct and proximate result of Defendants' fraud, Plaintiff suffered damages including: three voided eviction judgments totaling \$9,551.13; loss of his titled mobile home and all personal property; loss of at least three sale opportunities (\$60,000-\$105,000); overpayment of rent; unauthorized utility charges; and post-destruction billing of \$7,633.13.

WHEREFORE, Plaintiff demands judgment against Defendants, jointly and severally, for all actual damages caused by Defendants' fraud and misrepresentation, exemplary damages in an amount to be determined at trial, and such other relief as this Court deems just and equitable.

COUNT V -- VIOLATION OF MOBILE HOME COMMISSION ACT

MCL 125.2301 et seq.

76. Plaintiff re-alleges and incorporates by reference paragraphs 1 through 43 as if fully set forth herein.

77. The Mobile Home Commission Act ("MHCA"), MCL 125.2301 et seq., establishes a comprehensive regulatory framework governing the operation of mobile home parks in Michigan. Shady Oaks Mobile Home

Community is a licensed mobile home park under the MHCA, LARA License #1201891, with Bryon Fields as the registered licensee contact.

78. Defendants violated the following provisions of the MHCA:

a. MCL 125.2328(1)(b) -- Defendants installed water submeters and imposed submeter charges without proper notice to Plaintiff, in violation of the requirement that a mobile home park owner shall not change the basis on which utility charges are made without written notice to affected tenants;

b. MCL 125.2328(1)(c) -- Defendants imposed rent increases from \$395 to \$695 (March 2024) and from \$695 to \$720 (April 2025) without providing the required 30-day written notice prior to the effective date of the increase;

c. MCL 125.2330i -- Defendants treated Plaintiff's titled mobile home as if it were park property rather than Plaintiff's personal property, posting a "FREE" sign on the home, permitting public scavenging, and representing to prospective buyers that Plaintiff did not own his own titled home;

d. MCL 125.2307 -- Upon information and belief, Defendants failed to maintain the park in compliance with applicable health, safety, and environmental standards as required for continued licensure, as demonstrated by EGLE Violation Notice VN-017235 documenting sewage discharge, environmental non-compliance, and failure to notify authorities;

e. MCL 125.2312 -- Defendants failed to maintain the common areas and infrastructure of the park in a safe and sanitary condition, including the sewage system, resulting in raw sewage discharge onto the ground surface near occupied homes;

f. MHCA Rules (R 125.1501 et seq.) -- Defendants failed to comply with rules promulgated under the MHCA regarding: maintenance of sewage systems; notification of utility changes; and proper procedures for addressing tenant complaints.

79. EGLE's April 15, 2025 Violation Notice VN-017235 specifically cited violations of the Mobile Home Commission Act (MCL 125.2301 et seq.) in addition to Part 31 NREPA violations.

80. The MHCA violations were not isolated incidents but constitute a pattern of systematic non-compliance with the regulatory framework designed to protect mobile home park residents.

81. As a direct and proximate result of Defendants' MHCA violations, Plaintiff suffered damages including unauthorized utility charges; loss of personal property; exposure to raw sewage and unsanitary conditions; loss of his home; and all consequential damages.

WHEREFORE, Plaintiff demands judgment against Defendants, jointly and severally, for all actual damages caused by Defendants' violations of the Mobile Home Commission Act, and requests that this Court refer this matter to the Michigan Department of Licensing and Regulatory Affairs for administrative proceedings regarding Defendants' park license, and grant such other relief as this Court deems just and equitable.

COUNT VI -- INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

Common Law

82. Plaintiff re-alleges and incorporates by reference paragraphs 1 through 43 as if fully set forth herein.

83. Under Michigan common law, a claim for intentional infliction of emotional distress ("IIED") requires: (1) extreme and outrageous conduct; (2) intent or recklessness; (3) causation; and (4) severe emotional distress.

84. Defendants engaged in extreme and outrageous conduct that exceeds all bounds of decency tolerated by a civilized society, including but not limited to:

a. Shutting off water to a home with a child present: On May 20, 2025, Defendants shut off water service to Plaintiff's occupied dwelling while his minor child L.D.W. was present, depriving a young child of potable water and sanitation;

b. Posting a "FREE" sign on Plaintiff's titled home: On July 17, 2025, after drilling locks and removing Plaintiff's possessions, Defendants posted a "FREE" sign on Plaintiff's titled mobile home, inviting the public to scavenge Plaintiff's personal property -- a deliberately humiliating and degrading act designed to demonstrate Defendants' contempt for Plaintiff's property rights;

c. Attempted break-in: On July 3, 2025, individuals later identified as Defendants' agents attempted to break into Plaintiff's home, creating fear and apprehension of imminent property loss;

d. Destroying a child's home and belongings: The July 17, 2025 forced removal destroyed not only Plaintiff's property but also the personal belongings and home of Plaintiff's minor child L.D.W.;

e. Billing for a destroyed lot: On July 22, 2025, five days after destroying Plaintiff's home, Defendants billed Plaintiff \$7,633.13 for lot rent on a now-empty lot -- an act of deliberate cruelty and provocation;

f. Pattern of coercion and retaliation: Defendants subjected Plaintiff to a sustained campaign of coercion including: the "sign or be evicted" ultimatum on the Cricklewood lease; serial eviction filings based on fabricated arrears; blocking sales of Plaintiff's property; and the unconscionable \$750 buyout offer conditioned on waiving all legal rights;

g. Exposure to raw sewage: Defendants knowingly exposed Plaintiff and his minor child to raw sewage contamination for months while failing to remediate the conditions and while charging rent for uninhabitable premises.

85. Defendants engaged in this conduct intentionally or with reckless disregard for the probability that it would cause severe emotional distress. The sustained, multi-front nature of the harassment -- spanning coerced lease modifications, fabricated arrears, serial evictions, blocked property sales, water shutoff, and ultimately the destruction of Plaintiff's home -- demonstrates a deliberate campaign to break Plaintiff's will and force him to abandon his legal rights.

86. As a direct and proximate result of Defendants' extreme and outrageous conduct, Plaintiff has suffered severe emotional distress including but not limited to: anxiety; sleeplessness; fear for the safety and welfare of his minor child; humiliation; feelings of powerlessness; and the psychological trauma of having his and her

child's home and belongings destroyed and posted as "FREE" for public taking.

WHEREFORE, Plaintiff demands judgment against Defendants, jointly and severally, for compensatory damages for severe emotional distress in an amount to be determined at trial, exemplary damages, and such other relief as this Court deems just and equitable.

COUNT VII -- NEGLIGENCE

Common Law

87. Plaintiff re-alleges and incorporates by reference paragraphs 1 through 43 as if fully set forth herein.

88. Defendants owed Plaintiff, as a tenant and resident of Shady Oaks Mobile Home Community, a duty of reasonable care in the ownership, operation, management, and maintenance of the mobile home park and infrastructure.

89. This duty of care arises from: (a) the landlord-tenant relationship between the parties; (b) Defendants' statutory obligations under the Mobile Home Commission Act (MCL 125.2301 et seq.); (c) Defendants' obligations under MCL 554.139 to maintain the premises in compliance with applicable health and safety laws; and (d) Defendants' duty as property owners to maintain their property in a reasonably safe condition.

90. Defendants breached their duty of care in the following respects:

a. Sewage system failure: Defendants failed to maintain, inspect, repair, or replace the sewage infrastructure at Shady Oaks, resulting in raw sewage overflowing onto the ground surface near occupied homes, confirmed by EGLE inspection and Violation Notice VN-017235;

b. Failure to respond to notice: Defendants failed to respond to Plaintiff's written complaints (March 7 and March 17, 2025), failed to contact EGLE for seventeen days after the state inspection, and failed to take adequate remedial action after receiving Violation Notice VN-017235;

c. Unsafe septic conditions: Defendants left a septic/holding tank lid unsecured, creating a fall hazard and exposure risk near occupied homes with children;

d. Unauthorized utility modifications: Defendants installed water submeters without proper notice, engineering, or inspection, and operated a fraudulent billing system based on physically impossible identification water and sewer readings;

e. Failure to secure premises: Defendants failed to secure Plaintiff's home and property following the July 2025 attempted break-in, despite knowledge that unauthorized individuals were targeting the property;

f. Inadequate remediation: Defendants' minimal remediation efforts (jetting and TV inspection only) were insufficient to address the documented sewage system failures, as demonstrated by recurring sewage leaks in late June 2025.

91. As a direct and proximate result of Defendants' negligence, Plaintiff suffered damages including: exposure

to hazardous raw sewage; health risks to Plaintiff and his minor child L.D.W.; property damage; loss of use and enjoyment of the premises; and all consequential damages.

WHEREFORE, Plaintiff demands judgment against Defendants, jointly and severally, for all actual and consequential damages caused by Defendants' negligence, and such other relief as this Court deems just and equitable.

COUNT VIII -- BREACH OF CONTRACT AND UNCONSCIONABILITY

Common Law; MCL 440.2302

92. Plaintiff re-alleges and incorporates by reference paragraphs 1 through 43 as if fully set forth herein.

93. Plaintiff and Defendants entered into lease agreements governing Plaintiff's tenancy at Lot 17, Shady Oaks Mobile Home Community, including the November 2023 lease and the March 26, 2024 coerced Cricklewood lease.

94. These lease agreements constituted binding contracts under Michigan law, imposing mutual obligations on both parties. Defendants' obligations included, at minimum: (a) providing Plaintiff quiet and peaceful possession of Lot 17; (b) maintaining the premises and common areas in habitable condition; (c) providing utilities as agreed; (d) properly accounting for Plaintiff's rent payments; and (e) complying with applicable Michigan law governing landlord-tenant relationships.

95. Defendants materially breached the lease agreements in the following respects:

a. Failing to maintain the premises in habitable condition, as demonstrated by raw sewage contamination, EGLE violations, and shut-off water service;

b. Failing to properly credit Plaintiff's rent payments, omitting at least \$6,085.99 in documented payments;

c. Unilaterally imposing unauthorized charges on Plaintiff's account, including: another tenant's NSF fee (\$35.00); Defendants' own attorney fees (\$178.00); late fee overcharges (\$53.00); and fabricated utility charges;

d. Shutting off water service on May 20, 2025 while Plaintiff's minor child was present;

e. Failing to provide proper notice of rent increases as required by the lease and by statute;

f. Forcibly removing Plaintiff from the premises and destroying Plaintiff's property on July 17, 2025 without lawful authority.

96. The March 26, 2024 lease with Cricklewood MHP LLC was obtained through economic duress, specifically, Kim Davis's statement that Plaintiff must "sign or be evicted" -- and is voidable at Plaintiff's election.

97. In addition to breach, the lease agreements and related transactions contain unconscionable terms within the meaning of MCL 440.2302 and common law principles of unconscionability, including:

a. Payment waterfall clause: The lease contains a payment application clause directing all payments first to attorney fees, then to late fees, then to other charges, and only last to rent -- guaranteeing perpetual "unpaid rent" status regardless of amounts paid, and creating a mathematical impossibility of achieving current status;

b. \$750 buyout conditioned on total rights waiver: Defendants offered \$750 to extinguish claim conservatively valued at hundreds of thousands of dollars, conditioned on a complete waiver of all legal rights -- a grossly one-sided transaction reflecting an absence of meaningful choice by Plaintiff;

c. Entity substitution under duress: The March 26, 2024 lease substituted a completely different entity (Cricklewood MHP LLC) as the counterparty, executed under threat of eviction, without any disclosure of the entity change or its legal implications;

d. Rent escalation of 121%: Increasing lot rent from \$325 to \$720 per month in approximately 16 months imposed through coercion and without proper notice, in a context where Plaintiff had no meaningful alternative due to the immobility of his titled home.

98. Under MCL 440.2302, if a court finds a contract or any clause thereof to have been unconscionable at the time it was made, the court may refuse to enforce the contract, or it may enforce the remainder of the contract without the unconscionable clause, or it may limit the application of any unconscionable clause as to avoid any unconscionable result.

99. As a direct and proximate result of Defendants' breach of contract and unconscionable conduct, Plaintiff suffered damages including: overpayment of rent at coerced rates; loss of \$6,085.99 in omitted payments; unauthorized charges; loss of his home and property; and all consequential damages.

WHEREFORE, Plaintiff demands judgment against Defendants, jointly and severally, for all actual and consequential damages for breach of contract; a declaration that the March 26, 2024 Cricklewood lease is void as a product of duress; a declaration that the unconscionable lease provisions identified herein are void and unenforceable under MCL 440.2302; restitution of all overpayments; and such other relief as this Court deems just and equitable.

COUNT IX -- CIVIL CONSPIRACY

Common Law

100. Plaintiff re-alleges and incorporates by reference paragraphs 1 through 43 as if fully set forth herein.

101. Under Michigan common law, a civil conspiracy is a combination of two or more persons, by some concerted action, to accomplish a criminal or unlawful purpose, or to accomplish a lawful purpose by criminal or unlawful means.

102. The following Defendants and their agents acted in concert to accomplish the unlawful purposes alleged in this Complaint:

a. Shady Oaks Park MHP LLC -- the land-owning entity that collected rent, billed utilities, and benefited

from the unlawful scheme;

b. Homes of America, LLC -- the dissolved corporate operator that continued to initiate legal proceedings, collect rent, and exercise control over tenants' property despite lacking legal capacity;

c. Cricklewood MHP LLC -- the entity interposed as the lessor on the coerced March 26, 2024 lease;

d. Partridge Equity Group -- the entity that cashed Plaintiff's \$1,300.26 check, demonstrating commingling of funds and operations;

e. Kim Davis -- the park manager who directed the coerced lease signing under threat of eviction;

f. Nicole Browley -- the individual who admitted to acting on behalf of the dissolved HOA during the July 17, 2025 forced property removal;

g. Henry Brandel -- the contractor who removed Plaintiff's appliances during the July 17, 2025 property destruction;

h. DOES 1-10 -- additional unknown persons who participated in or facilitated the conspiracy.

103. The concerted actions taken in furtherance of the conspiracy include:

a. Coordinating the fabrication and manipulation of Plaintiff's rent ledger across multiple entity names and software versions to create the appearance of arrears;

b. Filing eviction proceedings in the name of a dissolved entity (HOA), knowing HOA lacked legal capacity;

c. Switching entities (HOA -> Cricklewood -> Shady Oaks) to obscure liability while maintaining continuous operational control;

d. Coordinating the July 17, 2025 forced entry, lock drilling, property removal, and destruction -- an operation requiring pre-planning and multiple participants;

e. Blocking sales of Plaintiff's mobile home through coordinated false statements about ownership;

f. Commingling funds across entities (Plaintiff's check cashed by Partridge Equity Group) to frustrate accounting and judgment enforcement;

g. Refusing government housing assistance payments as a matter of policy to manufacture arrears;

h. Billing Plaintiff \$7,633.13 five days after destroying his home.

104. Each overt act taken in furtherance of this conspiracy constitutes an independent actionable tort, alleged in Counts I through VIII above.

105. As a direct and proximate result of the conspiracy, Plaintiff suffered all damages alleged in the Complaint, including but not limited to: loss of his titled mobile home; loss of all personal property; loss of sale proceeds; overpayment of rent; unauthorized charges; severe emotional distress; and all consequential damages.

WHEREFORE, Plaintiff demands judgment against all Defendants and co-conspirators, jointly and severally for all actual and consequential damages caused by the civil conspiracy, exemplary damages in an amount to be determined at trial, and such other relief as this Court deems just and equitable.

IV. PRAYER FOR RELIEF

WHEREFORE, Plaintiff ANDREW JAMES PIGORS respectfully requests that this Court enter judgment in Plaintiff's favor and against all Defendants, jointly and severally, as follows:

A. Monetary Damages

1. Count I (MCPA): Actual damages trebled under MCL 445.911(2), including but not limited to: loss of Plaintiff's mobile home (\$15,000-\$45,000); loss of personal property; excess rent payments from coercion; increases; loss of sale proceeds from blocked transactions (\$60,000-\$105,000); relocation costs; and all other actual damages proved at trial -- multiplied by three;
2. Count II (Habitability): Full rent abatement from the commencement of uninhabitable conditions through the termination of tenancy, estimated at \$10,000-\$50,000 based on the severity and duration of sewage contamination, water shutoff, and EGLE-documented violations; costs of temporary remediation; consequential damages from exposure to sewage contamination; and all damages arising from the breach;
3. Count III (Conversion): Treble damages under MCL 600.2919a and MCL 600.2918, including: fair market value of Plaintiff's titled mobile home; fair market value of all destroyed personal property and household contents; loss of blocked sale proceeds (\$60,000-\$105,000); and all consequential damages -- multiplied by three;
4. Count IV (Fraud): All actual damages caused by Defendants' fraud and misrepresentation, including damages flowing from the three void eviction judgments totaling \$9,551.13, and exemplary damages;
5. Count V (MHCA): All actual damages caused by Defendants' violations of the Mobile Home Commission Act, MCL 125.2301 et seq.;
6. Count VI (IIED): Compensatory damages for severe emotional distress in an amount to be determined at trial, plus exemplary damages;
7. Count VII (Negligence): All actual and consequential damages caused by Defendants' negligence in the ownership, operation, and maintenance of Shady Oaks Mobile Home Community;
8. Count VIII (Breach of Contract): All actual and consequential damages for breach of contract, including restitution of rent overpayments, return of omitted payments (\$6,085.99), unauthorized charges, and total rent recovery estimated at \$5,000-\$24,000 representing rent paid for premises that materially failed to comply with applicable health and safety laws throughout the tenancy period;
9. Count IX (Civil Conspiracy): All actual and consequential damages caused by the civil conspiracy, plus exemplary damages;

B. Equitable Relief

10. An order declaring all three eviction dispositions (File Nos. 2405891BLT and 250616264T, totaling \$9,551.13) void ab initio as obtained by a dissolved entity lacking legal capacity under MCL 450.4802;
11. An order declaring the March 26, 2024 Cricklewood lease void as obtained through economic duress and coercion;
12. An order declaring the \$750 buyout/waiver provision void and unenforceable under principles of unconscionability;
13. An order declaring the payment waterfall clause and other unconscionable lease provisions void and unenforceable under MCL 440.2302;
14. An order piercing the corporate veils of the Defendant entities and holding the individual owners, members, and controlling persons personally liable for all damages in this action;
15. An order referring this matter to the Michigan Department of Licensing and Regulatory Affairs for administrative proceedings regarding Defendants' mobile home park license;

C. General Relief

16. Pre-judgment and post-judgment interest as allowed by law;
17. Costs of suit, including filing fees and service costs;
18. Reasonable costs and fees incurred by Plaintiff as a pro se litigant, where authorized by statute;
19. Treble Damages Summary (MTTPA / MCPA / Conversion): In total, Plaintiff's actual damages including habitability damages of \$10,000-\$50,000, rent recovery of \$5,000-\$24,000, and all other actual damages proved at trial -- are subject to statutory trebling under MCL 445.911(2) (MCPA), MCL 600.2918 (conversion), and MCL 600.2918 (forcible entry and detainer), yielding an aggregate treble damages exposure estimated at \$150,000-\$1,000,000;
20. Such other and further relief as this Court deems just and equitable.

V. JURY DEMAND

Plaintiff demands a trial by jury on all counts so triable, pursuant to MCR 2.508 and Const. 1963, Art. 1, S 1

VI. VERIFICATION

STATE OF MICHIGAN)

[illegible]

COUNTY OF MUSKEGON)

Dated: _____, 2025

ANDREW JAMES PIGORS, Plaintiff
1977 Whitehall Road, Lot 17
North Muskegon, MI 49445
(231) 903-5690
andrewjpigors@gmail.com

I hereby certify that on _____, 2025, I served a true and complete copy of the foregoing FIRST AMENDED COMPLAINT AND JURY DEMAND upon each of the following parties by first-class mail with postage prepaid, and/or by [TO BE DETERMINED BY ANDREW -- personal service / certified mail / other _____]

PO Box 249, 77 Engle Street
Englewood, NJ 07631

c/o Registered Agent

[TO BE DETERMINED BY ANDREW -- obtain current or last registered agent address from LARA record]

c/o Registered Agent

[TO BE DETERMINED BY ANDREW -- obtain registered agent address from LARA or Secretary of State records]

ANDREW JAMES PIGORS
1977 Whitehall Road, Lot 17

North Muskegon, MI 49445

Phone: (231) 903-5690

Email: andrewjpigors@gmail.com

Plaintiff, In Propria Persona

Dated: _____, 2025